

26PSCV01402 26PSCV01402

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-09-09

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Case Number: 26PSCV01402 Hearing Date: September 9, 2026 Dept: G

Defendant Phillip Matthew Kane's Motion to
Quash Service of Summons

Respondent: NO OPPOSITION

Defendant Turbo Wholesale Tires Inc.'s Demurrer
to Plaintiff Anatoly Pogorelov's Complaint

Respondent:
NO OPPOSITION

TENTATIVE
RULING

Defendant
Phillip Matthew Kane's Motion to Quash Service of Summons is GRANTED.

Defendant
Turbo Wholesale Tires Inc.'s Demurrer to Plaintiff Anatoly Pogorelov's
Complaint is CONTINUED.

BACKGROUND

This
is an intentional tort action. On
September 2, 2025, defendant Phillip Matthew Kane (Kane), an employee of
defendants Turbo Wholesale Tires Inc. (Turbo) and I&R Co. (I&R),
allegedly attached plaintiff Anatoly Pogorelov (Pogorelov) after Pogorelov

asked Kane to move his car out of Pogorelov's assigned parking space.

On

April 17, 2026, Pogorelov filed the Complaint, alleging causes of action for (1) assault, (2) battery, (3) intentional infliction of emotional distress, (4) negligence, and (5) negligent hiring, supervision, and retention.

On

July 8, 2026, Kane filed a motion to quash service of summons, and Turbo filed a demurrer, which are unopposed. On August 10, 2026, the court continued the hearing on the demurrer to allow the parties to properly meet and confer.

This

case is set for a case management conference, an order to show cause re: sanctions for Pogorelov's failure to appear, an order to show cause re: dismissal for Pogorelov's failure to prosecute, a hearing on the motion to quash service of summons, and a continued hearing on the demurrer on September 9, 2026.

QUASH SUMMONS

Kane

moves to quash service of summons on the ground that he lacks "minimum contacts" with California. For the following reasons, the motion is GRANTED.

Legal
Standard

Pursuant

to Code of Civil Procedure section 418.10, "[a] defendant, on or before the last day of [their] time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion . . . ȷ[t]o quash service of summons on the ground of lack of jurisdiction of the court over [them]." (Code Civ. Proc., § 418.10, subd. (a)(1).) Due process limits a state court's authority to exercise personal jurisdiction over a nonresident defendant. The court may exercise

jurisdiction over a defendant only if that defendant has “minimum contacts” with the forum state. “Minimum contacts” means the relationship between the non-resident and the forum state is such that the exercise of jurisdiction does not “offend ‘traditional notions of fair play and substantial justice’” under the Fourteenth Amendment of the United States Constitution. (Internat. Shoe Co. v. Wash. (1945) 326 U.S. 310, 316; see Pavlovich v. Super. Ct. (2002) 29 Cal.4th 262, 268.)

Personal

jurisdiction is either general or specific.

If the defendant's forum-related contacts are extensive and wide-ranging, or substantial, continuous, and systematic, the defendant may be subject to the court's general jurisdiction.

(See Boaz v. Boyle & Co. (1995) 40 Cal.App.4th 700, 717.) In the case of general

jurisdiction, the claims at issue need not be connected with the defendant's business relationship to the forum.

Instead, the defendant is subject to the court's jurisdiction for all

causes of action raised against it. (See

Vons Cos., Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445.) Specific jurisdiction, on the other hand, may exist when the defendant's contacts with the forum state are sufficient to subject the defendant to suit in the forum on a cause of action related to or arising out of those contacts. (See

Sonora Diamond Corp. v. Super. Ct. (2000) 83 Cal.App.4th 523, 536.) Whether specific jurisdiction exists turns on the quality and nature of the defendant's activities in the forum related to a particular cause of action. (See Cornelison v. Chaney (1976) 16 Cal.3d 143, 147–148.)

A

plaintiff opposing a motion to quash service of process for lack of personal jurisdiction has the initial burden to demonstrate facts establishing a basis for personal jurisdiction. (See

Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1062; see also Mihlon v. Super. Ct. (1985) 169 Cal.App.3d 703, 710, holding that “when jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that ‘minimum contacts’ exist between defendant and the forum state to justify imposition of personal jurisdiction.”)

Discussion

As

stated above, Pogorelov bears the initial burden to demonstrate facts establishing a basis for personal jurisdiction.

(See Snowney, supra, 35 Cal.4th at 1062.) Pogorelov, however, failed to file an opposition to argue that Kane has minimum contacts with California such that the court has personal jurisdiction over him.

(See Sexton v. Super. Ct. (1997) 58 Cal.App.4th 1403, 1410, applying a local rule to hold that “[t]he failure to file opposition creates an inference that the motion or demurrer is meritorious.”)

Therefore,

the motion to quash service of summons is GRANTED.

DEMURRER

Turbo

specifically demurs to the fourth and fifth causes of action of the Complaint. For the following reasons, the demurrer is CONTINUED.

Legal

Standard

Pursuant

to Code of Civil Procedure section 430.41, prior to filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

It further provides that “the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

While

Code of Civil Procedure section 430.41, subdivision (a)(4) makes clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further

conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

Turbo’s

counsel provides a supplemental declaration indicating that Pogorelov did not respond to counsel’s renewed efforts to meet and confer. (See Supp. Krumm Decl., ¶¶ 5–8.) Thus, Turbo’s counsel did not meet and confer in person, by video conference, or by telephone as required by Code of Civil Procedure sections 430.41, subdivision (a).

Therefore,

the demurrer is CONTINUED Turbo’s counsel is ORDERED to MEET AND CONFER with Pogorelov by telephone, video conference, or in person and FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.

CONCLUSION

For

these reasons, the motion to quash service of summons is GRANTED.

The

demurrer is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Defendant

Turbo Wholesale Tires Inc.’s counsel is ORDERED to MEET AND CONFER with plaintiff Anatoly Pogorelov regarding the present demurrer and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.